

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 04/15/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 4	24CV453851	Jason Stean v. Associated Plumbing	MOTION TO COMPEL Plaintiff propounded Request for Production, Set One, to Defendant on May 14, 2025. Several requests for, and grants of extensions to serve responses, have been exchanged between counsel. Request for Production of Documents Nos 7 and 52 are the subject of the current motion. Notice is proper. The Court has received no opposition from Defense. “[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Plaintiff’s motion is granted. Defendant to provide code compliant responses to Requests for Production of Documents Nos 7 and 52 within 20 days of the date this hearing. Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.
LINE 5	25CV460776	Bigler et. al v. Lee et al	MOTION TO COMPEL Please control click or scroll down to Line 5
LINE 6	25CV464001	Shari Yuan v. Starbucks Corporation	MOTION: CHANGE OF VENUE Please control click or scroll down to Line 6
LINE 7	25CV468850	Timothy McCarthy v. Ford Motor Company	PETITION TO COMPEL ARBITRATION Off Calendar; Moving Defendant Serramonte Ford dismissed from this action without prejudice on 04-03-26
LINE 8	24CV431895	Thi Nguyen v. Viet Hoia Le	MOTION TO ENFORCE SETTLEMENT Please control click or scroll down to Line 8

The Court addresses the current Defendant's Motion to Compel scheduled on April 15, 2026, and the upcoming Plaintiff's Motion to Compel scheduled on May 13, 2026.

1. Untimely opposition

Defendant filed a Motion to Compel on September 16, 2025 to be heard on April 15, 2026. Plaintiff's opposition filed on April 7, 2026 is untimely under CCP § 1005(b). Even applying the extended service period for electronic service, the opposition was due no later than April 6, 2026.

Pursuant to CRC 3.1300(d), the Court has discretion to consider late-filed papers. The Court declines to consider Plaintiff's untimely opposition in connection with the April 15, 2026 hearing, absent a showing of good cause and lack of prejudice.

2. Coordination of related discovery motions

The Court notes that a second motion to compel between the same parties is presently set for hearing on May 13, 2026, and that both motions appear to involve overlapping discovery disputes. In the interest of judicial economy and to avoid duplicative briefing and inconsistent rulings, the Court finds good cause to continue the April 15, 2026 Motion to Compel to May 13, 2026.

3. Order to meet and confer

Counsel are ordered to meet and confer in good faith regarding all outstanding discovery issues that are the subject of both motions. The meet and confer process shall be substantive and shall include identification and narrowing of all requests at issue, all responses and objections in dispute, and any issues resolved or mooted. The parties shall complete this process no later than April 25, 2026, and shall exchange a written summary of remaining disputes.

4. Consolidated motion schedule

To allow adequate time for meaningful meet and confer efforts while preserving sufficient time for judicial review, both motions will be heard on **May 13, 2026**. The Court sets the following consolidated briefing schedule for all remaining discovery disputes in both motions:

- Updated motions shall be filed and served no later than April 28, 2026.
- Oppositions shall be filed and served no later than May 7, 2026.
- Reply briefings shall be filed and served no later than May 11, 2026 at noon.
- The papers shall address **only remaining issues and shall supersede prior briefings.**

**COUNSEL ARE ORDERED TO APPEAR ON APRIL 15, 2026 AT 9:00 A.M. – IN PERSON
PREFERRED.**